

Analyst briefing: duration of status rule

Docket ICEB-2025-0001 (DHS/ICE) | Establishing a Fixed Time Period of Admission and an Extension of Stay Procedure for Nonimmigrant Academic Students, Exchange Visitors, and Representatives of Foreign Information Media

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AI-assisted draft for analyst review. Every figure below is computed from the project's output files; verdicts and labels are model-generated and should be confirmed against the cited sources.

Key points

- **Policy:** 6 of 23 policy areas were modified from the proposed to the final rule and 4 appear new (pending review).
- **Comments:** 52% of 9,999 analyzed comments are negative. The largest concern is "Fixed visa limits and loss of duration of status" (72% of comments).
- **News:** sampled articles average 82/100 on grounding; 5 of 93 featured claims are contradicted by the rule or court record.
- **Video:** 67 of 111 claims were supported when published, 3 contradicted; 9 may be outdated after the court ruling.
- **Status:** the final rule was postponed by the court on Sep 14, 2026; public-facing information published before that date may now be outdated.

1. Where the rule stands

Date	Event	Source
Aug 28, 2025	Proposed rule (V1) published; comment period opens	FR 2025-16554
Sep 29, 2025	Comment period closes	Federal Register
Jul 17, 2026	Final rule (V2) published	FR 2026-14439
Sep 14, 2026	Court postponed the final rule's effective date while the case continues (preliminary relief)	United States District Court for the District of Massachusetts, No. 1:26-cv-13799-FDS
Sep 15, 2026	Scheduled effective date	FR 2026-14439

Current status: the final rule has not taken effect; duration of status continues while the litigation proceeds. Confirm against the latest court docket.

2. What changed between the proposed and final rule

23 policy areas compared (27 provisions in V1, 24 in V2): **13 unchanged, 6 modified, 4 added, 0 removed**. 19 passed automated validation; 4 need analyst review.

Policy area	Change	What changed	Confidence / status
Admission requirements and EOS procedures for F, J, and I Nonimmigrants	modified	V2 consolidates several V1 provisions into one; adds a short-term 6 month reprieve for filing EOS for OPT/STEM OPT beneficiaries; clarifies that F-1 students with timely filed EOS can continue full course study until EOS adjudication; adds more details on departure effect and transition from D/S to fixed period admission.	medium validated
Prohibition on graduate-level F-1 students changing programs or transferring without exception	modified	V2 expands prohibition to include transfers in addition to program changes and allows limited exceptions authorized by SEVP for extenuating circumstances.	medium validated

Policy area	Change	What changed	Confidence / status
Reduction of allowed departure preparation period for F-1 nonimmigrants	modified	V2 adds explicit obligation to depart or maintain lawful status within 30 days if study or training ends early, beyond reduction from 60 to 30 days.	medium validated
Replacement of D/S with fixed time period admission for I nonimmigrants with exceptions for PRC nationals	modified	V2 clarifies admission lasts until activities or assignments completed and explicitly excludes certain PRC nationals from 240-day max except for exceptions; similar EOS availability provision.	medium validated
Codification of foreign media organization definition and updated evidence for I status eligibility	modified	V2 combines codification of definition and updated evidence for I nonimmigrants into one provision.	medium validated
Striking all D/S and duration of employment references for F, J, and I classifications	modified	V2 explicitly adds a restriction forbidding references to duration of status/employment, clarifying prohibition; V1 states striking references generally.	medium validated
Additional provisions limiting implementation delay for certain F and J nonimmigrants	added	This limitation on delay/suspension implementation for a 2-year period appears only in the final rule.	high review required
Temporary reprieve for J-1s with D/S expiration allowing EOS filing and continued work	added	New provision providing transitional relief for certain J-1s after rule effective date, absent in proposed rule.	high review required
Require J-1 exchange visitors and dependents to depart or maintain status within 30 days if program end dat...	added	New explicit requirement on departure or status maintenance within 30 days when program end date is shortened appears only in final rule.	high review required
Responsibilities of Responsible Officer for late program extension requests	added	New detailed RO responsibilities provision absent from proposed rule.	high review required

"Added" results are review candidates: the language may exist elsewhere in the proposed rule. Source: [policy_html_extraction/output/policy_changes_validated.json](#) (evidence quotes from both Federal Register versions).

3. Public comments

9,999 text comments analyzed out of 21,923 listed on Regulations.gov (46%). Attachment-only comments (often from organizations) are not in the text analysis.

Sentiment	Comments	Share		Top emotions	Comments	Share	
Negative	5,248	52%		Neutral	4,052	41%	
Neutral	4,367	44%		Anger	3,269	33%	
Positive	384	4%		Fear	1,814	18%	
				Disgust	581	6%	
				Sadness	174	2%	

Main concerns (topic clusters)

Concern	Comments	Share	
Fixed visa limits and loss of duration of status	7,152	72%	
Restrictions on second or same-level degrees	1,085	11%	
Mixed or unclassified international student and research concerns	679	7%	

Concern	Comments	Share	
Economic and institutional impacts of international student restrictions	472	5%	
Loss of global talent and U.S. competitiveness	192	2%	
Disruption to physician training and patient care	135	1%	
Visa program integrity, security, and domestic worker protections	91	1%	
Foreign journalist visa limits and press freedom	69	1%	
Concern provided in an attached file	66	1%	
Clean energy research and workforce impacts	58	1%	

Minority viewpoints to keep visible: Clean energy research and workforce impacts (58 comments); Foreign journalist visa limits and press freedom (69 comments); Visa program integrity, security, and domestic worker protections (91 comments). Small clusters can carry distinct arguments, including support for the rule, that a majority-only summary would hide.

Sentiment, emotion and topic labels are model estimates on de-identified text, not measures of public opinion overall; commenters are self-selected.

4. News coverage

20 articles in the briefing sample (17 scored), from 18 publishers in 4 countries. Average grounding score of scored articles: **82/100** (range 50 to 100). Stages covered: final rule (10), proposed rule (6), comment deadline (3), injunction (1).

Claim verdict	Claims	Share	
Supported	44	47%	
Partially supported	29	31%	
Contradicted	5	5%	
Unresolved	15	16%	

Claims contradicted by the rule text or court record (AI verdicts, pending analyst review)

Outlet	Claim	Why	Evidence
forbes.com	Under the proposed rule, F-1 students will have to file for an extension of F-1 status to be eligible for OPT and STEM OPT work extensions.	The proposed rule specifies that F-1 students recommended for post-completion OPT or STEM OPT who timely file their employment authorization application are not required to file an extension of stay (Form I-539) for the OPT period. Therefore, the claim that...	8 CFR 214.1(m)(1)(i) 90 FR 42084
americanbazaaronline.com	Students who exceed this period will need to leave the U.S. and obtain a new visa to return.	The evidence states that F-1 students who cannot complete within their admission period can apply to USCIS for an extension of stay with a new Form I-20 without needing to leave the U.S. Therefore, the claim that students must leave and obtain a new visa up...	8 CFR 214.2(f)(7)(i) 8 CFR 214.2(i)(3)(ii)
heraldgoa.in	Until Congress completes its review and an implementation date is announced, the current “duration of status” framework will remain in force.	The evidence establishes that the final rule has an effective date of September 15, 2026, at which point the fixed-period admission framework replaces the current duration of status framework. While subject to congressional review and possible change, the r...	91 FR 44976 8 CFR 214.1(m)(1)

Outlet	Claim	Why	Evidence
travelextra.ie	F Visas (International Students) are capped at a maximum stay of four years.	The claim states F visas are capped at maximum stay of 4 years; however, evidence shows F-1 students admitted to English language training programs are limited to 24 months plus 30-day departure (final:8 CFR 214.2/p7). Transition provisions allow currently...	8 CFR 214.2(f)(5)(i)(A) 91 FR 44978
townhall.com	Trump is also cutting back on the period in which foreigners may linger in the U.S. after completing their programs, reducing it from 60 to 30 days.	The claim that Trump is cutting the post-completion stay period from 60 to 30 days is contradicted. The rule clarifies that the 60-day departure period after program completion remains in effect for F students, and 30 days applies only to J visitors. The cl...	8 CFR 214.1(m)(1) 91 FR 45105

Stakeholder viewpoints reported in the news

oppose: 21, **support:** 15, **neutral:** 4. A balanced selection of both sides is listed below by organization; individuals quoted in the press are not named in this briefing.

Stance	Organization	Provision addressed	Reason given
Oppose	NAFSA: Association of International Educators	the proposed rule limiting duration of stay for foreign students	It will act as an additional deterrent to international students choosing to study in the United States, harming American economies, innovation, and global competitive...
Oppose	Quoted individual	new rule limiting international students to fixed periods of entry	fewer international students will come to America
Oppose	American Sociological Association	DHS proposed rule to eliminate Duration of Status and replace it with fixed four-year periods	It would create devastating barriers for international PhD students, force costly annual visa renewals, create bureaucratic hurdles, and harm academic progress and the...
Oppose	American Sociological Association	DHS proposed rule to eliminate Duration of Status and replace it with fixed four-year periods	It is particularly harmful to the social sciences that rely on diverse global perspectives to address worldwide social problems.
Oppose	American Council on Education (ACE) and 53 other higher-education a...	the proposed rule that replaces D/S policy with fixed four-year visa terms	the rule is flawed, tries to address problems that do not exist, and would severely restrict opportunities of international students and discourage them from choosing...
Oppose	Presidents' Alliance on Higher Education and Immigration	the proposed rule	it would cause significant harm to students and institutions, and likely dissuade international students, researchers, and scholars, harming institutions, businesses,...
Support	Presidents' Alliance	limiting the duration of stay to conform to the academic program	International students deserve assurance that their admission period will conform to the requirements of their academic programs and they are already closely monitored.
Support	Presidents' Alliance	rigorous oversight of international students	They already represent the most closely monitored population in the U.S. and are subject to rigorous oversight by DHS and academic institutions.
Support	Atlas Consultancy	the rule limiting students to complete one full year at their initial institution before transferring	such practices of transferring to smaller, lower-cost schools after initial admission with higher fees will be permanently curtailed

Stance	Organization	Provision addressed	Reason given
Support	Quoted individual	measure intended to strengthen oversight of temporary visa holders and enhance national security	to strengthen oversight of temporary visa holders and enhance national security
Support	Department of Homeland Security	assigning a fixed period of stay	would strengthen oversight of visa holders and help prevent potential abuse of the US immigration system
Support	U.S. Department of Homeland Security	capping international student stay to four years under their visa	restores integrity to the nation's immigration system, combats rampant visa abuse and strengthens national security through regular vetting
Neutral	MSM Unify	four-year cap	the four-year cap is not what hits Indian students hardest since most are in two-year master's programs
Neutral	MSM Unify	impact of new F-1 visa rule on Indian student demand for US universities	while it may encourage some families to explore alternatives, demand for American universities is unlikely to disappear

Source: news_analysis/output/fact_check/*_ui.csv (20-article display sample of 88 fact-checked articles). Coverage reflects GDELT indexing and search terms, not all media.

5. Video coverage

10 videos (YouTube 5, Facebook 5), **111** claims. Of the 81 claims the rule text can judge, **83% were supported** when published. **9** accurate claims are flagged as possibly outdated since publication (AI suggestion, pending analyst review). Known reach: **255,047** views across 10 videos with public view counts.

Verdict (at publish)	Claims	Share	
Supported	67	60%	
Partly supported	11	10%	
Contradicted	3	3%	
Not in rule text	19	17%	
Not checked	11	10%	

Speaker	Type	Published	Views	Claims	Supported	Maybe outdated
GoElite	consultancy	2025-10-10	375	15	7	2
Bloomberg Television	news outlet	2026-07-17	69,795	11	6	1
CSULB CIE	university	2026-08-06	285	11	8	2
Law Office of Louis S. Haskell	law firm	2026-08-13	165,536	15	10	1
Individual creator	individual	2026-09-10	244	5	3	3
Bethel Law Group	law firm	2026-09-14	17,000	12	8	0
Visa Guide USA	creator	2026-09-14	344	15	9	0
Nova Law Group	law firm	2026-09-15	210	9	4	0
Maven Consulting Services	consultancy	2026-09-15	70	5	0	0
FJ Diza, US Immigration Attorney	attorney	2026-09-15	1,188	13	12	0

Claims contradicted by the rule text (AI verdicts, pending analyst review)

Speaker	Claim	Rule text says	Citation
GoElite 2025-10-10 at 2:20	September 28th was the last day to submit comments on regulations.gov to push back on the DHS proposal.	The timeline and passage [2] from the proposed rule clearly state that comments must be received on or before September 29, 2025, not September 28. Passage [1] confirms comments must be submitted by the last day of the comment period, which the timeline def...	90 FR 42070
CSULB CIE 2026-08-06 at 0:21	Starting September 15, 2026, F-1 and J-1 visa holders will be admitted for a fixed period of time instead of the length of their program.	The proposed rule (v1) and final rule (v2) passages consistently state that F-1 and J-1 visa holders will be admitted for the length of their program as listed on their Form I-20 or DS-2019, up to a maximum of 4 years, plus 30-day arrival and departure peri...	90 FR 42095
Law Office of Louis S. Haskell 2026-08-13 at 2:14	The new rule takes effect on September 15, 2026, with no grace period for program changes or extensions.	The timeline and final rule passages confirm the effective date of the final rule as September 15, 2026 (passage 4 and timeline). Passage 5 states there is a 60-day implementation period before the rule takes full effect and a 4-year transition period for t...	91 FR 44976

Source: video_analysis/video_claims_for_ui.csv. Claims about what the court said are marked "not in rule text" until the court order is added as evidence.

6. Method, sources and limits

Built with PolicyLens on Microsoft Foundry (Azure OpenAI, gpt-4.1-mini) for policy extraction and claim checking, with local models for comment sentiment, emotion, toxicity and topics, and Whisper for video transcription. Claims are checked against the official Federal Register text of the proposed rule (FR 2025-16554) and final rule (FR 2026-14439); news claims also against the court order (D. Mass. No. 1:26-cv-13799).

Limits: verdicts, labels and topics are AI-assisted and need analyst review; samples are English-only and not representative of all coverage or public opinion; attachment-only comments are excluded from the text analysis; "added" policy changes and "outdated" flags are review candidates. This briefing is not legal advice or an official agency finding; the Federal Register text is authoritative.

ANALYST DECISION: the final call rests with the reviewing analyst					
☐	APPROVE	☐	APPROVE WITH CHANGES	☐	DO NOT APPROVE
Reviewer		Date		Notes	